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LINE: 7

24-CIV-02988

FRANCISCO JAVIER OROZCO-LOPEZ, ET AL VS. NICOLE RENEE CAZARES, ET AL

FRANCISCO JAVIER OROZCO-LOPEZ
NICOLE RENEE CAZARES

DANIEL J. RAFII
IAN A. SCHAEFFER

DEFENDANTS ALEJANDRO CAZARES and NICHOLE CAZARES' MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

TENTATIVE RULING:

For the reasons stated below, Defendants Alejandro Cazares and Nichole Renee Cazares' Motion for Summary Judgment is **GRANTED**. Defendants' alternative request for summary adjudication is **MOOT**.

The Court notes that Defendants' motion papers do not identify the location of the hearing as required by California Rules of Court, rule 3.1110(b)(1). Department 2 is located at the Northern Branch, Courtroom K, 1050 Mission Road, South San Francisco, California 94080. Plaintiffs, however, obtained the order continuing the hearing on this Motion to September 10, 2026, and no prejudice from the omission is shown. The Court therefore considers the Motion on its merits.

A defendant moving for summary judgment bears the initial burden of showing that one or more elements of the plaintiff's cause of action cannot be established or that a complete defense exists. (Code Civ. Proc., § 437c, subd. (p)(2).) If that burden is met, the burden shifts to the plaintiff to demonstrate a triable issue of material fact. (Ibid.) In determining the motion, the Court does not weigh the evidence and must view the evidence and reasonable inferences in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843; *Weiss v. People ex rel. Department of Transportation* (2020) 9 Cal.5th 840, 864.)

Plaintiffs' sole cause of action is for negligence arising from a March 14, 2023 automobile collision involving a vehicle registered to Defendant Alejandro Cazares. Defendants contend that the vehicle had been taken and driven without their permission by an unidentified third party and that Defendants therefore owed Plaintiffs no duty with respect to that person's operation of the vehicle. The evidence submitted in support of the Motion establishes that the vehicle had been parked at Defendants' residence; the vehicle's keys were accounted for; the driver was not a permitted user; the members of Defendants' household identified in the evidence were elsewhere at the time of the collision; and Plaintiffs' own testimony does not identify either Defendant or a member of their household as the driver.

Ordinarily, absent special circumstances, the owner of a motor vehicle owes no duty to protect third persons from injuries caused by a thief or other unauthorized person who takes and operates the vehicle. (*Richards v. Stanley* (1954) 43 Cal.2d 60, 65–66; *Murphy v. Pina* (2025) 115 Cal.App.5th 305.) Special circumstances may give rise to a duty where the circumstances create an unusually foreseeable risk that the vehicle will be taken and negligently operated. (*Hergenrether v. East* (1964) 61 Cal.2d 440, 444–445.) Examples include leaving a

vehicle accessible under circumstances amounting to an invitation to theft or leaving unusually dangerous machinery readily available to persons likely to misuse it.

No such circumstances are shown here. Unlike cases imposing a duty, Defendants did not leave the vehicle unlocked with the keys in the ignition or otherwise make it unusually accessible to unauthorized users. The record does not establish circumstances from which Defendants reasonably should have anticipated that an unauthorized person would take the vehicle and negligently operate it. Indeed, the facts here present a less foreseeable risk than those found insufficient to impose a duty in *Richards* and *Murphy*.

Defendants have therefore met their initial burden of demonstrating that the duty element of Plaintiffs' negligence claim cannot be established. (Code Civ. Proc., § 437c, subd. (p)(2).) Plaintiffs filed no opposition and submitted no evidence raising a triable issue of material fact. The absence of opposition does not itself warrant summary judgment, but Defendants' affirmative evidentiary showing satisfies their initial burden and remains uncontroverted.

Accordingly, Defendants' Motion for Summary Judgment is **GRANTED**.

Defendants' Request for Judicial Notice is **GRANTED** as to the existence and contents of the Complaint and the identified police reports. Judicial notice does not extend to the truth of disputed factual statements contained in those documents. (Evid. Code, §§ 452, 453; *Dominguez v. Bonta* (2022) 87 Cal.App.5th 389, 400.)

Judgment shall be entered in favor of Defendants Alejandro Cazares and Nichole Renee Cazares and against Plaintiffs Francisco Javier Orozco Lopez and Maria Del Carmen Cardenas Villa.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendants shall prepare a written order and judgment consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

2:00 PM

LINE: 8

25-CIV-04197

HAB SIAM VS. BRAD GERSTNER, ET AL

**HAB SIAM
BRAD GERSTNER**

**MATTHEW DITON
ANJALI PRASAD VADILLO**

DEFENDANT BRAD GERSTNER'S DEMURRER TO FIRST AMENDED COMPLAINT

TENTATIVE RULING:

For the reasons stated below, Defendant Brad Gerstner's ("Gerstner") Demurrer to Plaintiff Hab Siam's ("Plaintiff") First Amended Complaint ("FAC") is **SUSTAINED WITH LEAVE TO AMEND** as to the First through Sixth and Eighth through Tenth Causes of Action and **OVERRULED** as to the Seventh Cause of Action.

FIRST, SECOND, THIRD, FOURTH, FIFTH, EIGHTH, NINTH AND TENTH CAUSES OF ACTION

Plaintiff alleges Gerstner is the alter ego of Defendant Altimeter Capital Management, LP ("Altimeter") as a basis for imposing liability on Gerstner. To establish alter-ego liability, a plaintiff must allege sufficient facts showing both a unity of interest and ownership such that the separate personalities of the entity and its owner no longer exist, and that an inequitable result would follow if the entity alone were treated as the actor. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 415.)

The FAC alleges that Gerstner founded Altimeter, is its sole legal and beneficial equity owner, and exclusively controls Altimeter and its investment funds. (FAC, ¶¶ 2–4.) Those allegations establish ownership and control, but do not allege additional facts demonstrating the requisite unity of interest or an inequitable result from recognition of Altimeter's separate existence. Sole ownership and control, without more, are insufficient. (*Leek*, supra, 194 Cal.App.4th at p. 415.)

Accordingly, to the extent Gerstner's liability on these causes of action is premised solely upon alter ego, the Demurrer is **SUSTAINED WITH LEAVE TO AMEND**. The Court does not reach Gerstner's remaining challenges to these causes of action, which substantially overlap with the arguments raised in Altimeter's separately filed demurrer.

SIXTH CAUSE OF ACTION — LIBEL PER SE

The Sixth Cause of Action alleges that Gerstner sent a text message to Plaintiff's current employer accusing Plaintiff of dishonesty and unethical legal practices by "fabricating" claims and "shaking down" Gerstner and Altimeter. (FAC, ¶¶ 82–83.)

The words constituting an alleged libel must be specifically identified, although they need not necessarily be pleaded verbatim. (*Medical Marijuana, Inc. v. ProjectCBD.com* (2020) 46 Cal.App.5th 869, 893–894.) In